

CHAPTER 63.

An Act to provide for the inclusion in Orders made under the Summary Jurisdiction (Married Women) Act, 1895, of a provision for the Maintenance of the Children of the Marriage under sixteen.

[23rd December 1920.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Provision for
maintenance for
of children.
59 & 60 Vict.
c. 39.
2 Edw. 7.
c. 28.

1.—(1) An order under section four of the Summary Jurisdiction (Married Women) Act, 1895, whether as originally enacted or as extended by section five of the Licensing Act, 1902, made on the application of a married woman, which contains a provision committing the legal custody of any children of the marriage to the applicant, may, in addition to any other provision authorised by the Act, include a provision that the husband shall pay to the applicant, or to any officer of the court or third person on her behalf, a weekly sum not exceeding ten shillings for the maintenance of each such child until such child attains the age of sixteen years.

(2) Any such order made before the passing of this Act may be varied, on the application of the married woman, so as to include from the date of the variation of the order such a provision for the maintenance of the children as aforesaid.

Short title.

2. This Act may be cited as the Married Women (Maintenance) Act, 1920, and the Summary Jurisdiction (Married Women) Act, 1895, and this Act may be cited together as the Married Women (Maintenance) Acts, 1895 and 1920.

CHAPTER 64.

An Act to amend the Law regarding the Property of Married Women in Scotland. [23rd December 1920.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

The right of
administra-
tion wholly
abolished.

1. After the passing of this Act the property, heritable or moveable, of a married woman shall not be subject to the right of administration of her husband, and that right is hereby abolished, and a married woman shall, with regard to her estate, have the same powers of disposal as if she were unmarried;

and any deed or writing executed by her with reference to her heritable estate in Scotland or to her moveable estate shall be as valid and effectual as if executed by her with consent of her husband according to the present law and practice.

2. A husband of full age, and subject to no legal incapacity, whose wife is in minority, shall be her curator during her minority, but no longer; but where the husband is in minority at the date of the marriage, or subject to some legal incapacity, the wife's father, or other curator, if she have any, shall be entitled to continue to act as such until she attains majority, or her husband's curatory commences.

Husband to be curator to his wife only during her minority.

3.—(1) A married woman shall be capable of entering into contracts and incurring obligations, and be capable of suing and being sued, as if she were not married, and her husband shall not be liable in respect of any contract she may enter into or obligation she may incur on her own behalf.

Contracts and capacity to sue and be sued.

(2) A married woman, if living apart from or deserted by her husband, shall, on entering into any contract for the supply of goods or furnishings for herself or for her children, be deemed to bind her own estate in the same way as if she were unmarried, but without prejudice to the right of the person who supplied such goods or furnishings to recover the price thereof from such husband, if he shall be liable therefor in accordance with the present law.

4. In the event of a husband being unable to maintain himself, his wife, if she shall have a separate estate, or have a separate income more than reasonably sufficient for her own maintenance, shall be bound out of such separate estate to provide her husband with such maintenance as he would in similar circumstances be bound to provide for her, or out of such income to contribute such sum or sums towards such maintenance as her husband would in similar circumstances be bound to contribute towards her maintenance.

A married woman to be liable for maintenance of indigent husband.

5. Donations *inter virum et uxorem* shall be irrevocable by the donors: Provided that—

Donations *inter virum et uxorem* to be irrevocable.

- (a) this enactment shall not take effect as regards donations made or granted before the passing of this Act until the expiry of one year from and after that date;
- (b) any donation completed within a year and day before the sequestration of the estates of the donor under the Bankruptcy (Scotland) Act, 1913, or any amending statute, shall be revocable at the instance of the creditors of such donor.

3 & 4 Geo. 5. c. 20.

6. Subject always to the provisions of section one of this Act, nothing in this Act contained shall apply to any provision made in favour of or reserved by either spouse by Antenuptial Contract of Marriage whether dated before or after the passing

Saving for marriage contracts.

of this Act, and all such provisions shall be as valid and irrevocable in all respects as if this Act had not been passed.

Application. 7. This Act shall apply where the husband is domiciled in Scotland; and

(1) notwithstanding that the husband shall be domiciled furth of Scotland, the enactment contained in section one of this Act shall apply with regard to the heritable property in Scotland of his wife; and

(2) the enactment contained in section five of this Act shall apply to all estate situated in Scotland, and by the law of Scotland heritable as between husband and wife, although the donor of such estate shall be domiciled furth of Scotland.

Citation. 8. This Act may be cited as the Married Women's Property (Scotland) Act, 1920, and the Married Women's Property (Scotland) Act, 1881, and this Act may be cited together as the Married Women's Property (Scotland) Acts, 1881 and 1920.

CHAPTER 65.

An Act to carry out certain Conventions relating to the employment of Women, Young Persons, and Children, and to amend the law with respect to the employment of Women and Young Persons in Factories and Workshops. [23rd December 1920.]

WHEREAS at Washington, on the twenty-eighth day of November, nineteen hundred and nineteen, a general conference of the International Labour Organisation of the League of Nations adopted three conventions containing (together with other provisions) the provisions set out in Part I., Part II. and Part III. of the Schedule to this Act :

And whereas at Genoa on the ninth day of July, nineteen hundred and twenty, a general conference of the International Labour Organisation of the League of Nations adopted a convention containing (together with other provisions) the provisions set out in Part IV. of the Schedule to this Act :

And whereas it is expedient that for the purpose of carrying out the said conventions the provisions hereinafter contained should have effect :

And whereas it is expedient to make further provision as to the conditions under which women and young persons may be employed in factories and workshops :